

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502987	WHITELEY vs HARLEY-DAVIDSON MOTOR COMPANY, INC.	MOTION TO QUASH DEFENDANTS' SUBPOENAS SERVED ON PLAINTIFF'S SUBSEQUENT EMPLOYER

Tentative Ruling:

The court's Order Granting Joint Supplement to (1) Plaintiff's Motion for an Order Quashing Defendants' Subpoena Served on Plaintiff's Subsequent Employer and (2) Defendant's Motion to Enforce Subpoena to Frinj Energy-Heating & Air Conditioning, filed May 26, 2026 orders that:

1. Plaintiff's Motion for an Order Quashing Defendants' Subpoena Served on Plaintiff's Subsequent Employer, filed on March 30, 2026, and (2) Defendants' Motion to Enforce Subpoena to Frinj Energy-Heating & Air Conditioning (the "Pending Motions") are supplemented to cover the Parties' dispute concerning the Best in Batteries, Inc. subpoena in addition to the Frinj Energy-Heating & Air Conditioning subpoena
2. The Parties' oppositions and reply briefs shall address both subpoenas; and
3. The June 2, 2026 hearing shall cover both subpoenas, and the Court's order on the Pending Motions shall be applicable to both subpoenas.

Thus, hearing on this Motion to Quash Defendants' Subpoenas Served on Plaintiff's Subsequent Employer was advanced and heard on June 2, 2026. On June 2, 2026, the court quashed the deposition subpoenas as to both Best in Batteries, Inc. and Frinj Energy-Heating & Air Conditioning, without prejudice to Defendants issuing appropriately tailored subpoenas. No sanctions were ordered.

This hearing is thus vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506427	RESNICK vs RIVERSIDE HEALTHCARE SYSTEM, L.P.	MOTION FOR RECONSIDERATION OF MOTION TO COMPEL ARBITRATION

Tentative Ruling:

CCP § 1008 provides that any party affected by a court's prior order may request that the court "reconsider the matter and modify, amend or revoke the prior order." (CCP § 1008(a).) A motion for reconsideration under CCP § 1008 is the exclusive means to modify, amend, or revoke a court order. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.) Such motion must be brought within 10 days after service of written notice of entry of the order and must be "based upon new or different facts, circumstances, or

law” than those before the court at the time of the original ruling. (CCP § 1008(a).) When a party seeks reconsideration, he or she must show a “satisfactory explanation for failing to provide the evidence earlier, which can only be describes as a strict requirement of diligence.” (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690; see also, *Cradduck v. Hilton Domestic Operating Co.* (2025) 112 Cal.App.5th 284, 304; *California Correctional Peace Officers Ass’n v. Virga* (2010) 181 Cal.App.4th 30, 47.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the original hearing.” (*Cradduck, supra*, 112 Cal.App.5th at 304 [internal quotations and citations omitted].) The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd, supra*, 32 Cal.App.4th at 1500.) Facts known by the party seeking reconsideration when the original ruling was made are not considered “new or different.” (*In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468.)

First, the moving papers are procedurally defective. A motion for reconsideration must be accompanied by an affidavit stating what application was made before, what judge heard the matter, what orders were made, and what new or different facts, circumstances, or law are claimed to be shown. (CCP § 1008(a).) Plaintiff provides the required declaration on reply, which is the precise issue they argue is grounds for the motion – that is, purported “new” evidence on reply. Regardless of the procedural deficiency, the motion also warrants denial on the merits.

Plaintiff argues the court should reconsider its ruling because it did not address the “springing activation clause” in its order and that because advanced health care directive was only included on reply, it qualifies as “new” evidence warranting reconsideration. It does not. To move for reconsideration of a prior court order on the basis of “new or different facts” or newly discovered evidence, the moving party must provide a satisfactory explanation for the failure to produce that evidence at an earlier time. (*Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 353.) Plaintiff’s argument is that the advanced health care directive is new evidence on reply – not newly discovered evidence or facts. Plaintiff counsel’s reply declaration states he “...had no reason to analyze the specific activation provisions...[because] the AHCD had not been put at issue by Defendants’ original moving papers.” (Declaration of Derek J. Wilson, ¶ 6.) Counsel does not dispute the assertion that the advanced health care directive was in Plaintiff’s possession prior to the motion to compel arbitration. Counsel’s admitted failure to analyze the directive simply because he assumed it wasn’t at issue does not qualify as “new or different facts” sufficient for the court to reconsider its prior ruling. Notwithstanding, even if the advanced health care directive was new evidence, Plaintiff’s argument fails. As with the opposition, Plaintiff’s counsel seems to misunderstand the burden for proving the existence of an arbitration agreement. California Rules of Court, rule 3.1330 provides that a party seeking to compel arbitration must attach a copy of the agreement to the petition or the petition must set forth the provisions of the agreement. *The moving party needs only to allege the existence of an*

agreement, and once they have done so the burden shifts to the responding party to prove the falsity of the purported agreement. (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219; emphasis added.)

The Arbitration Defendants' initial burden was minimal – “As a preliminary matter the [trial] court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity. [Citation.]” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058 [held defendant employer met its initial burden by attaching to petition to arbitrate a copy of the purported arbitration agreement bearing employee's electronic signature].) The moving party need not introduce evidence of the authenticity of the signature on the arbitration agreement as part of its prima facie showing of the existence of a valid agreement until authenticity of the agreement is challenged. (*Id.*; *Condee, supra* 88 Cal.App.4th at 218.)

The court based its ruling regarding the existence of an arbitration agreement on the Arbitration Defendants meeting this initial burden and Plaintiff's subsequent failure to provide evidence of the falsity of the purported agreement. Plaintiff only argued the Arbitration Defendants failed to meet their burden by not establishing that Ms. Drafton had authority to bind him. But Plaintiff provided zero evidence in support of this argument. With the initial burden met, Plaintiff was required to carry the burden of *producing evidence* to challenge the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) Without any evidence that sufficiently or properly challenged Ms. Drafton's authority, Plaintiff failed to meet his burden, and the court thus did not factor in the evidence offered on reply because the analysis ends with such failure. Plaintiff's assertion the court “accepted” the advanced health care directive as establishing Ms. Drafton's authority is incorrect.

Plaintiff makes a final argument that the court should also reconsider its ruling regarding CCP § 1281.2(c) because the ruling did not address the controlling California authority directly on point. Plaintiff argues the court failed to address *Mt. Diablo Medical Center v. Health Net of California, Inc.* (2002) 101 Cal.App.4th 711. This argument is improper for a motion for reconsideration because it is not based on new or different facts, circumstances, or law.

Notwithstanding the improper request for reconsideration on these grounds, is incorrect that *Mt. Diablo* is “directly on point.” The arbitration agreement at issue in *Mt. Diablo* did not specifically state that the FAA's procedural rules apply. Rather, the court in *Mt. Diablo* analyzes a generic choice of law clause and its effect on whether the FAA or California state procedural rules apply. (*Id.* at 722.) The clause in *Mt. Diablo* stated, “[t]he validity, construction, interpretation and enforcement of this Agreement” shall be governed by California law” and the court explained that, “The explicit reference to enforcement reasonably includes such matters as whether proceedings to enforce the agreement shall occur in court or before an arbitrator.” (*Id.*)

In comparison, the agreement here states, “...the parties agree that this Agreement is to be governed by the [FAA] and *the procedural rules set forth in the [FAA]* shall govern

any and all arbitration proceedings, *including any petition to compel arbitration.*" (Declaration of Ariona Quijano in support of Motion to Compel Arbitration, Exhibit A, Article VII, § 7.2; emphasis added.) This specific incorporation of the FAA's procedural rules is what preempts CCP § 1281.2(c) regardless of whether the subsequent contract provision excluding CCP § 1281.2(c) is enforceable or not as Plaintiff also argues. *Mt. Diablo* is not applicable and Plaintiff's argument is entirely without merit even if it was supported by new or different facts, circumstances, or law.

The motion for reconsideration is denied in its entirety.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600810	STALLWORTH vs NEW DAY CHRISTIAN FELLOWSHIP CHURCH	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

The meet-and-confer requirement has been met.

Judicial Notice

New Day asks the Court to take judicial notice of its Statement of Information, filed 7/6/26 with the California Secretary of State. **The court grants the request for judicial notice of the document as to its existence, but not the truth of the matter, pursuant to Evid. Code § 452(d).**

New Day moves to strike Plaintiff's claim for punitive damages on two grounds: (1) that it is a religious corporation, and C.C.P. § 425.14 only allows a Plaintiff to bring a claim for punitive damages against a religious corporation after a court order, which Plaintiff here did not obtain; and (2) Plaintiff has not sufficient facts to support a claim for punitive damages against New Day.

C.C.P. § 425.14

Pursuant to C.C.P. § 425.14, "[n]o claim for punitive or exemplary damages against a religious corporation or religious corporation sole shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive or exemplary damages to be filed. The court may allow the filing of an amended pleading claiming punitive or exemplary damages on a motion by the party seeking the amended pleading and upon a finding, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established evidence which substantiates that plaintiff will meet the clear and convincing standard of proof under Section 3294 of the Civil Code." (C.C.P., § 425.14.)